

24STCV22136 24STCV22136

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Case Number: 24STCV22136 Hearing Date: August 5, 2026 Dept: 735

Beverly Hills View, Inc. v. Visiontech Group,
Inc.

Plaintiff/Cross Defendant Beverly Hills View,
Inc.'s Motion to Compel Deposition of Cross-Complainant Visiontech Group,
Inc.'s Person Most Knowledgeable

BACKGROUND

On August 29, 2024, Plaintiff Beverly Hills View, Inc. filed a complaint against Defendant Visiontech Group, Inc., asserting causes of action for (1) breach of contract; (2) fraud; and (3) breach of the implied covenant of good faith and fair dealing. Plaintiff alleges it purchased LED growing lights for marijuana cultivation from Defendant that did not function.

On November 4, 2024, Visiontech filed a cross-complaint against Beverly Hills View, Inc., asserting causes of action for (1) breach of contract; and (2) goods rendered.

DISCUSSION

Beverly Hills View ("BHV") moves to compel the deposition of Visiontech's person most knowledgeable. BHV served a deposition notice on January 2, 2025, with a deposition date of January 31, 2025. BHV asserts that Visiontech's person most knowledgeable did not appear for the January 31, 2024 deposition. BHV then noticed a second deposition on March 5, 2025, for April 1, 2025, and a third deposition on May 7, 2025, for June 5,

2025. Visiontech's PMK did not appear for either deposition. The categories for deposition include the contract, the defective lights, Visiontech's failure to replace the defective lights, and Visiontech's efforts to source the replacements elsewhere. Visiontech has not filed an opposition to this motion. BHV is entitled to take the deposition of Visiontech's PMK.

BHV

requests \$4,382.00 in sanctions. As Visiontech has not opposed this motion, the Court will not allow recovery of fees for reviewing an opposition and drafting a reply. The request for sanctions is granted in the reduced amount of \$3,093.00 (6.7 hrs x \$450.00 per hour + \$78.00 in costs.)

CONCLUSION

The Court grants BHV's motion to compel the deposition of Visiontech's person most knowledgeable. The Court grants the request for sanctions in the reduced amount of \$3,093.00.

Visiontech's PMK is ordered to appear for deposition within 30 days of notice of ruling.

BHV to give notice.